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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2126/20 - 2019 ජුනි මස 04 වැනි අඟහරුවාදා - 2019.06.04

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(Published by Authority)

PART IV (A): PROVINCIAL COUNCILS

Provincial Council Notifications

Western Province Provincial Council

Wattala - Mabola Urban Council

**Notice Published under Section 154 of Urban Councils Ordinance Read with
Section 2 of Provincial Councils (Consequential Provisions) Act No. 12 of 1989**

IT is hereby announced that the by-laws described in the following schedule hereto, formulated by Wattala-Mabola Urban Council under Section 153, read along with Section 157 (Chapter 255) of Urban Councils Ordinance, were approved as per the powers conferred to me under Section 154 of Urban Councils Ordinance required to be read along with Section 02 of the Provincial Councils (Consequential Provisions) Act No. 12 of 1989.

ISURA DEVAPRIYA,
Chief Minister and Minister of Finance and
Planning, Engineering Services, Law and Order,
Local Government and Provincial
Administration, Economic Development,
Electricity and Energy, Environmental Affairs,
Water Supply and Drainage and Tourism Affairs
of Western Province.

At Provincial Council Building,
No. 204, Denzil Kobbekaduwa Mawatha,
Battaramulla.
On the 18th Day of April, 2019,

This Gazette Extraordinary can be downloaded from www.documents.gov.lk

BY-LAW

WATTALA-MABOLA URBAN COUNCIL

BY-LAW RELATING TO FOOD PRODUCTION AND DISTRIBUTION CENTERS OF WATTALA-MABOLA URBAN COUNCIL

1. This by-law shall be enforced to regularize, supervise and control food production and distribution centers within Wattala - Mabola Urban Council area of authority with a charge prescribed and levied on it.
2. This by-law shall be cited as the By-law Relating to Food Production and Distribution Centers.
3. Unless there is a valid licence issued by the Chairman under this by-law, no person shall maintain food production and distribution center (hereinafter referred to as the “premises”) within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as “area of authority”) .
4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
5. Unless the following mentioned conditions in the by-laws of this part are fulfilled; the Chairman shall not issue a license to any food production and distribution center:—
 - (i) All the permanent constructions relating to the premises shall be constructed in conformation to a written law and approved plan;
 - (ii) The premises should be of proper renovated condition;
 - (iii) The minimum height of the walls of all rooms shall not be less than 2.5 Meters, while the said walls should be constructed permanently with both sides plastered with mortar and applied with paints;
 - (iv) While every room in the interior of the premises shall be fixed with a ceiling, it shall be at a height of not less than 2.5 Meters from the ground level;
 - (v) Every room of the premises shall have windows that could be opened to the outside. The area of the opened windows shall not be less than one fifteenth of the floor area of the room. Where a room is air conditioned, these provisions may not apply in the same manner;
 - (vi) The roof shall be made of some solid material;
 - (vii) The floor of the buildings of the premises should be finished with cement or tiled;
 - (viii) While dust bins shall be placed to collect waste generated in the site, they shall have lids to keep them closed so as to prevent entry of flies or other kinds of insects;
 - (ix) Necessary arrangements to comply with the requirements set out in By-law, shall have been put in place in order to dispose of waste produced in the premises;
 - (x) Furniture used within the premises shall be of proper finish, wherein tables and chairs should be polished off in the event of them being built of wood or metal and the top surface of the tables shall have been covered with a glass sheet;
 - (xi) A separate section shall be maintained in the premises to wash utensils used;
 - (xii) Separate lavatories and urinals for males and females shall have been provided for the use of the employees and the customers;

- (xiii) A suitable system of drains shall be made available to allow free flow of waste water disposed of from any section of the premises. Never shall the drains be discharged to a public access way;
- (xiv) Sufficient fire extinguishing equipment should be provided to the premises.
- 6. The licensed premises shall be swept at least twice a day and the drains carrying waste water shall be cleaned and washed with water at least twice daily.
- 7. Pets, such as dogs or cats should not be reared within the premises.
- 8. The lavatories and urinals at the licensed premises shall be cleaned at least twice a day and disinfected and maintained so as to prevent bad smell spreading.
- 9. To contain foods and handle foods of the premises, specific equipment should be used and they shall be kept in proper cleaned condition.
- 10. (a) All the waste material produced at the licensed premises shall be categorized as:—
 - (i) bio degradable waste ;
 - (ii) glass ;
 - (iii) paper or paper based materials ;
 - (iv) polythene and plastics or material based on polythene and plastics ;
 - (v) iron and other kinds of metal or parts of iron and other kinds of metal ;

Action shall be taken for final disposal of waste collected under the above mentioned process in the premises in accordance to a waste management program in operation within the said area of authority.

- 11. (a) Provided that the period of infection or of incubation of an infectious, contagious or skin disease has not elapsed no person suffering from such disease or had contacted such a disease in the recent past or had been recently nursing anybody who is suffering from such a disease shall engage himself or employ anybody or let anybody else engage in service in a licensed premises or as an assistant of any person engaged in service at such a premises.
- (b) Provided that a person is dressed in washed and clean clothes no person shall engage himself or employ anybody else in any form of duty at any licensed premises.
- (c) It shall be the duty of the licensee to refer all employees engaged at the licensed premises to a medical test at least once a year.
- 12. It shall be the duty of the licensee to supply aprons to every employee engaged in preparation of food or beverages at the licensed place and to ensure that the employees are always wearing these aprons when they are on duty.
- 13. While it shall be lawful for the Chairman or an Authorized Officer to buy a sample of any kind of food kept for sale or displayed for sale in the premises, no licensee shall desist or prevent such purchase.
- 14. It shall be lawful for the Chairman or an officer authorized by the Chairman for a specific period of time to enter the premises and inspect it, wherein, the licence holder or the caretaker of the premises should make space and give all the assistance for the inspection.
- 15. In the event of the premises is maintained in a manner contravening the provisions specified under this by-law and when the Chairman has made an announcement regarding such contravention, it shall be lawful for the Chairman to annul the issued licence if remedial action is not taken within the specified time period as informed by the said announcement.

16. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
17. In this part, unless the context otherwise requires -

“Council” means the Wattala Urban Council;

“Chairman” means the Chairman of Wattala Urban Council;

“Urban Council Area of Authority” means the area in which the Urban Council has been established;
18. In case any inconsistency occurs between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

**BY-LAW ON INSTITUTIONS PRODUCING GOODS RELATING TO ALUMINUM OF
WATTALA-MABOLA URBAN COUNCIL**

1. This by-law shall be enforced to allocate provisions to regularize, supervise, control and levy charges on institutions producing goods relating to Aluminum within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law on Institutions Producing Goods Relating to Aluminum within Wattala – Mabola Urban Council.
3. Unless on a licences issued by the Chairman of the Council for the intended purpose, no person shall maintain an institution producing goods relating to Aluminum within Wattala – Mabola (hereinafter referred to as ‘area of authority’) Urban Council Area of Authority.
4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
5. (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.
- (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law:
 - (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room;
 - (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement and the remaining part plastered with mortar applied with paints.

- (iii) The end of eaves shall be more than 2 Meters above the floor level;
- (iv) The roof shall be made of some solid material;
- (v) All the wood work should be applied with paints.
- (vi) The entire floor should be constructed with some solid material.
- (vii) The premises should be constructed in a manner allowing sufficient water drainage.
- (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
- (ix) Sufficient fire extinguishing facilities should be provided to the premises.
- (x) There shall be sufficient facilities to park vehicles .
- (xi) First-aid facilities should be provided.
- (xii) Should maintain an accidents list.

8. Every licence holder holding a licence under this by-law:

- (i) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
- (ii) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
- (iii) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins.,
 - (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
- (iv) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
- (v) A health insurance program relating to every employee shall be put into operation. Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
- (vi) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
- (vii) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.

9. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.

10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.

11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
13. Every licence holder shall paint the said premises annually during the period of conducting his business.
14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
17. Every license holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.
20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be pasted on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises, owner or person using the premises in such notice.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
24. In this by-law unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.

25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY-LAW RELATING TO RECEPTION HALLS OF WATTALA-MABOLA URBAN COUNCIL

1. This by-law shall be enforced to control and levy charges on Reception Halls maintained by the Urban Council within the Urban Council area of authority.
2. This by-law shall be cited as the By-law Relating to Reception Halls within the Urban Council Area of Authority
3.
 - (i) A person intending to obtain a pass to use a reception hall (hereinafter referred to as the ‘Reception Hall’) maintained by the Urban Council, shall forward an application obtained from the Council and duly filled in accordance to this by-law.
 - (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council by way of a resolution passed therein.
4. when issuing a pass to a person who forwards an application as stated in 3rd by-law to use a reception hall, the Chairman shall not issue a license unless the below mentioned conditions have been fulfilled:—
 - (i) Every application requesting a pass to use the reception hall shall be considered in the order such application was received to the Urban Council office.
 - (ii) The pass shall be issued only after the payment of reception hall reservation fee and deposit amount as decided and declared by the Urban Council from time to time.
5. Forwarding an application to use a reception hall should be made at least three days prior to the day the reservation is expected to be made.
6. When an applicant needs to cancel the reservation of a reception hall that has been reserved under the provisions of this by law, the Chairman may allow such cancellation subject to the following conditions.
 - (i) When the request for the cancellation of reservation is made:
 - (a) Three months before the event, five percent from the fee paid,
 - (b) Two months before the event, ten percent from the fee paid,
 - (c) One month before the event, fifteen percent from the fee paid,
 - (d) Fifteen days before the event, twenty five percent from the fee paid,
 - (e) three days before the event, fifty percent from the fee paid,
 - (f) three days after the event, seventy five percent from the fee paid, should be retained in the Urban Council Fund.

- (ii) When a reservation is cancelled, the applicant should have the right to obtain the total deposit amount paid by him on behalf of such reservation.
7. A reception hall reserved by someone shall not use its stage to other purpose other than the intended purpose whereas; the materials and property provided to it shall not be used to any other task other than the task deployed to it.
8. A pass issued to reserve a reception hall shall not be transferred to any other person on any reason.
9. Where permission is not granted to a request made by a person to reserve a reception hall, informing the said applicant in writing on the day of the application submission itself and stating the matters for such rejection shall be the Chairman's duty.
10. In case the date of reservation of any reserved reception hall needs to be changed, the applicant may make a written request to the Chairman. According to the said request, the amendment of the date reserved shall be subjected to regulations stipulated in 4th and 5th by-laws herein.
11. Subsequent to using the reception hall allocated for certain task, after deducting,
- (i) the value of damage, if any damage has been caused to the reception hall or a part thereof,
- (ii) from the deposit amount deposited in the Urban Council, the remaining amount may be paid to the applicant after the fee to be levied on excess time period the reception hall was utilized than the duration reserved for.
12. No person shall damage or cause to damage a reception hall or an equipment thereof, owned by the Urban Council.
13. Utilization of the reception hall shall be subject to reception hall caretaker's administration and if any antisocial activity or any activity breaks off in the reception hall or in the manner damaging the property of the land in which the reception hall located in, the pass holder shall be responsible to the reception hall management.
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15. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
16. In this by-law unless the context otherwise requires,
- “Council” means Wattala – Mabola Urban Council ;
- “Chairman” means the Chairman of Wattala – Mabola Urban Council;
- “Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
17. In case any inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY-LAW RELATING TO CHICKEN SELLING CENTERS OF WATTALA-MABOLA URBAN COUNCIL

1. This by-law shall be enforced to regularize, supervise, control and levy charges on chicken selling within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law Relating to Chicken Selling Centers within Wattala - Mabola Urban Council area of authority.

3. No person shall use a place for the purpose of selling chicken in Wattala – Mabola Urban Council Area of Authority without a valid licence issued by the Chairman of Wattala – Mabola Urban Council under the provisions of these by laws.
4. Unless the trading stall requesting a licence under this by-law conforms to the conditions stipulated below, the Chairman shall not issue a license to any person to maintain a chicken selling center:—
 - (i). The stall where meat is exhibited for sale shall be laid with tiles or plastered with cement or applied with rust proof metal sheets;
 - (ii) The floor of the premises where chicken is exhibited for sale and the floor of the stores shall be finished off with cement or laid with tiles ;
 - (iii) There shall be drains finished off with cement or laid with tiles with the necessary gradient to facilitate the flow of waste water ;
 - (iv) While sufficient precautions shall be put in place to prevent the waste water draining through the drains referred to in paragraph (3) flowing to any public source of water, action shall be taken to drain off such waste water to a suction pit ;
 - (v) The suction pit put in place to accept waste water shall not be opened to air ;
 - (vi) While containers sufficient to hold biodegradable waste produced at the meat stall shall be made available whereas action shall be taken at the end of the day's sales to ground such waste material at least 0.5 meters deep in the ground or to dispose such in the manner decided and implemented by the Urban Council from time to time.
 - (vii) Sufficient sealed lavatory facilities should be made available for the use of persons employed at the stall and suitable sanitary facilities and materials should be provided to be used after utilizing the lavatories.
5. No animal shall be slaughtered at a licenced stall and poultry should not be kept on display at such place.
6. Meat of other animals shall not be sold at the licenced premises under this by-law.
7. At the end of the daily sales of any licensed chicken stall action shall be taken to wash and clean the floor, the tiled or cemented parts of the walls, logs used to cut fish, other utensils and the places exhibiting the meat for sale with disinfectant fluid.
8. Measures shall be taken to keep the licensed chicken stall and its surrounding drains, all the utensils and equipments used in chicken storage, preparation or sales in proper repaired condition and without odour.
9. Provided that meat left behind unsold at the conclusion of daily sales at the licensed chicken stall are stored in a deep freezer and the said deep freezer had been properly activated from the time of storage until the opening of the stall for sales on the following day meat of chicken left behind unsold shall be sold or exhibited for sale or kept in the deep freezer or at the licensed stall on the following day.
10. Where an order is published in the *Gazette* notification by the proper authority as per provisions of the Butcher's Ordinance prohibiting slaughtering of animals for meat on certain day at whatever slaughterhouse or at any other place, no meat selling stall shall keep meat on sale or display meat for sale or store meat.
11. Whatever licenced chicken sales center shall be maintained devoid of dogs, cats, rats, insects or any other animal.
12. Except instruments and containers used for storage or processing or sale of meat no other goods or clothes or mats used for sleeping or any other material shall be kept at the licensed stall.

13. Action shall be taken to keep drinking water in sufficient quantities for the use of employees serving in the licensed premises.
14. (1) Provided that the period of infection or of incubation of a infectious, contagious or skin disease has not elapsed no person suffering from such disease or had contacted such a disease in the recent past or had been recently nursing anybody who is suffering from such a disease shall engage himself or employ anybody or let anybody else engage in any form of sale or as an assistant of any person engaged in sale at any meat stall.
- (2) Provided that a person is dressed in washed and clean clothes no person shall engage himself or employ anybody else in any form of sale at a meat stall.
- (3) It shall be the duty of the licensee to refer all employees deployed at the meat stall to a medical test at least once a year.
15. It shall be the duty of the licensee to supply safety facemasks, gloves and other safety materials necessary to the employees and to ensure that they are wearing these safety materials at every time they are on duty at the meat stall.
16. It shall be the duty of the licensee to provide soap or soap fluid for the use of all persons employed at the licensed premises.
17. While it shall be lawful for the Chairman or an Authorized Officer to buy a sample of any kind of meat kept for sale or displayed for sale or stored inside the premises of any meat stall, no licensee shall desist or prevent such purchase.
18. (1) Provided that all waste material produced at the licensed premises are recycled, action shall be taken to categorize the waste material under the categories. -
 - (i) bio degradable waste ;
 - (ii) glass ;
 - (iii) paper or paper based materials ;
 - (iv) polythene and plastics or material based on polythene and plastics ;
 - (v) iron and other kinds of metal or parts of iron and other kinds of metal ;
 - (vi) left-over from other raw materials made use of in the production process or by products or other parts produced in the production line ;
 - (vii) dangerous waste ;

and it shall be the duty of the licensee to see that they are put in separate containers or tanks put in place for that purpose.
- (2) Provided that the waste put in containers or tanks having being categorized in the manner set out in Sub-section (1) above is disposed of under the programme of waste management launched by the Urban Council, the final disposal shall be done in the manner prescribed by the Chairman.
19. The appropriate time for inspection of the provisions of the by-laws in this part by the Chairman or by an Authorized Officer shall mean any occasion chicken sales are done at the chicken-stall.
20. In the event of the premises where sale of chicken is carried on under a licence issued under the by-laws of this part fails to maintain it in accordance with any one of the provisions set out in Section 04 or contravenes the provisions of any by-law of the by-laws set out in this part the Chairman shall take action to issue a notice to the said licensee demanding him to accomplish necessary conditions to restore the said premises to the prescribed position before a specified date.

21. Any licensee in receipt of a notice mentioned in Section 19 shall act in the manner prescribed in the notice before the date specified in the notice. At any time when acceptable reasons have been forwarded in writing, the Chairman shall have the power to extend the date specified in the said notice. However, the period of such extension shall not exceed more than fourteen days.
22. When any licensee in receipt of a notice mentioned in Section 20 fails to act in accordance with the manner set out in the notice before the date specified in the notice or the date extended it shall be lawful for the Chairman to cancel the licence issued to that premises.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
24. In this by-law unless the context otherwise requires,
“Council” means Wattala – Mabola Urban Council ;
“Chairman” means the Chairman of Wattala – Mabola Urban Council;
“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
25. In case any inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW ON STORE-KEEPING PLACES WITHIN WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to regularize, supervise, control and levy charges on store-keeping places within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law on Store-keeping Places within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as the ‘area of authority’)
3. Unless on a licence issued by the Chairman for the intended purpose, no person shall maintain a store-keeping place (hereinafter referred to as ‘premises’) within the Urban Council area of authority.
4. (i) Every person applying for a licence shall apply for it under an application confirming to this by-law and obtained from the Council.
(ii) The charges for an application under Sub-section (i) above shall be the charges decided and declared from time to time by the Council.
05. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
06. Every licence issued shall be valid up to 31st of December of the year for which it had been issued unless it is cancelled earlier.
07. Unless the premises in which the service is maintained conforms to the following conditions, no person shall have a right to obtain a licence under this by-law.
(a) Should be buildings built as per an approved plan for the intended purpose under the Urban Development Authority Act.

- (b) The premises should be provided with fire extinguishing facilities
- (c) Sufficient sanitary facilities should be provided within the premises.
- (d) Closed bins should be maintained to dispose the waste collected in the premises and it has been built in a manner enabling easy disposal.
- (e) Sufficient first-aid facilities should be provided to employees engaging in work in the premises.
- (f) Measures should be taken to control the breeding of insects and other animals within the premises.
- (g) Every premises should have access ways of sufficient width, whereas, the person applying for the licence should have a right to enter the premises in the relevant access way.
- (h) Facilities should be provided to store various goods to be stored separately and safely.

08. Every licence holder holding a licence under this by-law,

- (i) shall store all materials necessary for carrying on the trade in such a manner that no offensive odours will emanate from them or create any nuisance.
- (ii) when taking away things that can cause offensive odours or nuisances from the licensed premises along public thoroughfares, shall take them in closed non-absorbent vessels to prevent odours or nuisances.
- (iii) shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
- (iv) shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
- (v) shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily
- (vi) shall dispose the waste collected in the premises according to the waste management program of the Council.
- (vii) should not repair machinery within the premises.
- (viii) shall paint the said premises annually during the period of conducting his business.
- (ix) shall keep all the tools including equipment and utensils used in the trading activities cleanly.
- (x) shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further and to remove them daily in the manner prescribed by the Urban Council.

9. It shall be lawful for the Chairman or any Officer of the Urban Council specially authorized by the Chairman for the relevant purpose to enter premises during official hours and to inspect the premises. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspections.

10. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has the power to cancel the licence at such an occasion.

11. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these

by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.

12. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence, at a conspicuous place in the licence holding premises.
13. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be hanged on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises owner or person using the premises in such notice.
14. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
15. In this by-law unless the context otherwise requires,
“Council” means Wattala – Mabola Urban Council ;
“Chairman” means the Chairman of Wattala – Mabola Urban Council;
“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
“Person assigned with control” means an officer or officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law.
“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;
“Person” includes a group of persons incorporated or unincorporated;
“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
16. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW ON SLAUGHTERHOUSES WITHIN WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to regularize, supervise, control and levy charges on slaughterhouses situated in Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law on Slaughterhouses established within Wattala – Mabola Urban Council Area of Authority.
3. Every slaughterhouse maintained within Wattala –Mabola Urban Council Area of Authority (hereinafter referred to as ‘area of authority’) shall be maintained under the custody of a Slaughterhouse caretaker.
4. Except within the times prescribed by the proper authority in advance, no licenced slaughterer should be allowed to slaughter animals within the slaughterhouse.

5. A licenced butcher shall slaughter animals only in the place allocated to the said slaughterer by the slaughterhouse caretaker within the slaughterhouse.
6. No animal should be slaughtered unless a permit had been issued to kill the said animal by the Divisional Medical Health Officer or an officer authorized by him after inspecting the said animal.
7. The permit issued under above Sub-section 6 shall be valid up to 7 days from the date of issue.
8. A document proving the prior ownership of every animal slaughtered should be in possession of the slaughterhouse caretaker and he shall keep in his possession a document containing the nature of the animal, details of prior ownership as well as all the other details stated in a format approved by the Urban Council.
 - (a) A person failing to forward the following confirmations to the Slaughterhouse Caretaker prior to entering an animal to the slaughterhouse should not be permitted to enter the animal
 - a. Certificate of identification
 - b. Fitness certificate
 - c. permit
9. Animals brought into the slaughterhouse or retained therein should be properly bound with ropes to prevent them from fleeing. If not, other security measures should have been taken.
10. Every licenced butcher should document the names of the employees who wish to be employed in the business of Slaughterhouse as butchers in the Urban Council office. Registration or rejection of certain name, cancellation of a name that has already been registered may be performed by the Chairman or by an officer authorized by him. Any such person unregistered or name-cancelled thus, shall not be deployed in the service by a registered butcher.
11. Every licenced butcher shall handover a certified copy of his licence and a certified copy of a registration certificate of every employee deployed in the slaughterhouse by him to the slaughterhouse caretaker as soon as they are obtained.
12. Hides, guts and discarding parts of slaughtered animals shall be collected by the slaughterer or by his employees in places allocated for that task to be washed and cleaned before they are removed.
13. With regard to any damage caused to the slaughterhouse by activities of the licenced butcher or his registered employees when the slaughterhouse is used by them, the registered butcher shall hold the responsibility and he should pay the loss incurred therein. If payment of the amount is defaulted, the Chairman may cancel the licence or charge the value of the loss from the registered butcher or his guarantors or exercise both such penalties.
14. A person suffering from certain skin disease, leprosy, infectious or contagious disease shall not be allowed inside the slaughterhouse by the slaughterhouse caretaker.
15. It shall be lawful to decide and levy charges on animals for the following stated tasks on one animal by the Council by way of a resolution passed at the Council from time to time.
 - (1) To use slaughterhouses
 - (a) cattle (except buffaloes)
 - (b) swine and goats
 - (2) Feeding the cattle (for a time period of twenty four hours or part thereof)
 - (a) cattle (except buffaloes)
 - (b) swine and goats

(3) to utilize the shed

- (a) cattle (except buffaloes)
- (b) swine and goats

16. An animal retained in the slaughterhouse owing to the reason of defaulting payments, the Chairman may cause that animal to be sold at public auction by publicizing two days before such auction if the relevant fees are not paid further. From the money received by selling thus, after retaining certain charges receivable on behalf of that animal and any charges incurred on it, the remaining amount, if there be any, should be paid, on his request, to the person who brought the animal to the slaughterhouse to be slaughtered. If the person who brought the animal to the slaughterhouse fails to claim the relevant money within one year of selling the animal in public auction, such money shall be credited to the Council Fund.
17. Slaughtering an animal found to be unfit for human consumption owing to it being sick or due to any other reason, it shall be lawful to prohibit slaughtering of such animal by the slaughterhouse caretaker or by Divisional Health Officer even if a permit has been issued or not issued by then to slaughter that animal. Further, no person shall slaughter such animal.
18. The person who brought in an animal refused to be issued with a permit for slaughtering or an animal prohibited to be slaughtered, shall remove that animal within twelve hours of such refusal to issue pass or prohibition of slaughtering. If he defaults removing the said animal from slaughterhouse, measures shall be taken as per provisions stated in by law.
19. Unless under a format issued by the Council and in possession of a permit issued by the Chairman or an officer authorized by him, no person shall remove and take meat, hide, guts or discarded meat of an animal slaughtered in a public slaughterhouse. Any person removing and taking such meat, skin, guts or discarded meat should handover the permit when requested by some officer of the Urban Council.
20. No dog shall be allowed inside the slaughterhouse and owner or caretaker of a dog shall not bring that dog into the slaughterhouse or let it enter the slaughterhouse on any grounds. All the dogs found inside a slaughterhouse should be considered as stray dogs.
21. No licenced butcher or his registered employee or any other person let inside the slaughterhouse shall not make certain noise in the slaughterhouse, create uproar or quarrel or use abusive, insulting or indecent words.
22. Provided that a special licence has been obtained from the proper authority, killing of any animal within the area of urban council authority by a person not being a licenced butcher shall not be legal and a person who obtains such special licence shall not carry on that slaughtering other than at the place stated in the licence or under the conditions stipulated in the said licence.
23. Every slaughterhouse should be cleaned by washing twice a day and it shall be the duty of slaughterhouse caretaker to maintain it under proper maintenance.
24. Where an animal approved as above for slaughtering found to be contacted by an illness subsequent to its slaughtering, or observed that it is not fit for human consumption, measures shall be taken by the Chairman or any other authorized person to prevent it from being utilized for human consumption. The decision taken by the Veterinary Officer or Medical Health Officer in this regard shall be the final decision. When action is taken thus, no party has the right to ask for compensation.
25. In the process of animal slaughtering, skinning and carving, the butchers shall not let any person enter the slaughterhouse other than their assistants, Urban Council officers attached to the slaughtering and authorized persons.
26. All the discarded meat left at the slaughterhouse by butchers or their assistants or other waste should be disposed without causing any nuisance.
27. No person shall take meat of whatever animal to the outside of the slaughterhouse unless it is covered without exposing it to sunlight, dust, rain and the public.

28. Contravention of any provisions of this By-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
29. In this By-law unless the context otherwise requires,
 “Council” means Wattala – Mabola Urban Council ;
 “Chairman” means the Chairman of Wattala – Mabola Urban Council;
 “Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
 “Authorized Officer” means an officer assigned with authority by the Chairman of Wattala – Mabola Urban Council .
 “Proper Authority” means the Chairman of Wattala – Mabola Urban Council or person authorized by him.
 “Slaughterhouse Caretaker” means a person appointed to take care of the slaughterhouse or person maintaining a slaughterhouse.
 “Animals” includes the same interpretation given in “Butchers’ Ordinance”.
30. In case any inconsistency between the Sinhala and Tamil texts of this By-law, the Sinhala text shall prevail.

BY-LAW RELATING TO MAINTENANCE OF WATER SERVICES OF WATTALA – MABOLA URBAN COUNCIL

01. This by-law is enforced to allocate provisions to implement a drinking water scheme by Wattala - Mabola Urban Council, matters consequential to it including levying charges relevant to it.
02. This by-law shall be cited as the By-law Relating to Maintenance of Water Services within Wattala – Mabola Urban Council.
03. It shall be lawful for the Wattala – Mabola Urban Council (hereinafter referred to as the ‘area of authority’) to maintain a drinking water supplying facility within Wattala – Mabola Urban Council area of authority on behalf of the water requirement of the area as decided by the Council and under identified areas.
04. Charges to be levied for the services maintained by the Council under the above section, shall be decided and declared by time to time by the Council by a resolution passed therein.
05. Every person intending to obtain water facilities under the water supply scheme implemented by Wattala – Mabola Urban Council (hereinafter referred to as the ‘service’), shall request from the Chairman for the facility by way of a duly filled application obtained from the Council.
06. When providing a private water connection or when changing the already given water connection, the expenses estimated by the Council should be borne by the applicant. Based on the applicant’s poverty, the expenses incurred in providing a water connection may be exempted by way of a resolution passed in the Council.
07. An active stop valve of the brand approved by the Chairman or the officer authorized by him should be provided for all the private water service connection and it shall be fixed as close as possible to the place where the said water service is supplied. A chamber and a lid should be provided to it to enable access to such valve all the time.

08. No pipeline, valve or other fixation, being a part of private water supply connection built anew, shall not be closed down until inspection by the Chairman of Local Government Authority or his authorized officer and approved by way of a written document.
09. (i) No pipeline shall be laid close to certain waste drain, drain or cesspit or septic tank or a ash pit or manure pit, or through such place, or touching such place. However, except in unavoidable circumstances, no such pipeline should be laid through some dirty soil or cause to be surrounded by harmful matter causing the pipelines to deteriorate untimely or let pipelines touch such matter.
- (ii) Where it is unavoidable that such pipeline be sent through dirty soil or other harmful material, the pipeline should be prevented contacting such soil or matter by way of sending it through an anticorrosive pipe or by any other suitable method approved by the Head of local government authority or his authorized officer.
10. (i) All the pipes used for construction of a private water service connection should be of polyvinyl chloride or polythene or galvanize coated iron or cast iron plated with Bitumin mixture by any other material under the approval of National Water Supply and Drainage Board, while an officer authorized by the Chairman shall approve that they are of relevant density, quality and strength as specified in the next paragraph herein.
- (ii) All the Polycynyl Chloride pipes (P.V.C) shall accord to No. 147:1993 of Sri Lanka Quality Standards or amendment made to it from time to time. The SLS mark should be contained in the water pipes produced in Sri Lanka. All the joints and fittings of P.V.C. pipes shall accord to No. 659 of Sri Lankan Standards 1993 or to Part I and II of No. 4346 of British Quality Standards 1970, or to amendments made to them from time to time.
- (iii) All the Polyethylene pipes used to construct private water service connection should accord to No. 6572 of British National Standard of 1985 or to amendments made to it from time to time or any other national standard. Pipes used on the surface of ground should accord to No. 6730 of 1986 or to amendments made to it from time to time or any other national standard.
- (iv) All the galvanize coated iron pipes used to construct a private water service connection shall accord to No. 1387 of British Standards of 1985 or to amendments made to it from time to time.
- (v) water pipes of other brand or other types of water pipes used on the spot should be pipes that have received the approval of the Water Supplies and Drainage Board as conducive to supply drinking water and accord to accepted national or international standard.
11. The meter deployed to measure the water volume supplied to certain place under water services, and its installation and maintenance charges shall be borne by the applicant.
12. Considering the difference between the first meter reading and final meter reading, the quantity consumed within the relevant month should be calculated as follows.
- (a) Regarding a meter fixed anew, its first reading is the reading taken at the time of its fixation, whereas in another occasion, the final reading of the previous month become the first reading for the subsequent month. The final reading for a month shall be the reading taken on a date not exceeding 10 days after the lapse of that month. However, where the meter is removed and taken away for repairs making it difficult to take the final reading, the final reading shall be taken before the said meter is removed and taken away.
- (b) Where two or more than two meters are used in one place within a month, the total of all the meters should be the amount of water consumed within the month.
13. It shall be lawful for the Council, to serve at the end of every calendar month, a clearly prepared bill to its consumers as per provisions stated in this by-law and charge a fee from every owner or resident of every house

or consumer place based on the water volume consumed by them and according to charges decided and declared by the Council.

14. If a resident of a particular place questions about the accuracy of the meter deployed in the water service obtained to his place, based on that resident's request and upon payment in advance of an inspection fee prescribed by the relevant Council, the relevant meter should be inspected by an officer authorized by the Council in the presence of the resident or representative authorized by him. This inspector should possess technical skills approved by the National Water Board. The results of the said inspection should satisfy the resident and according to those inspection results, the meter should be corrected.
15. (i) A person expecting to obtain a private water service, subsequent to forwarding an application under this by-law having stated the intended purpose of the water service, and, after being decided by a Council resolution that the request can be accomplished, the relevant private water service should be provided.
- (ii) When performing the task of the request made to the Council for obtaining a private water service, if the Council, based on technical reports, decides that the total water supply service may get affected in terms of continuous and proper supply of water, if the requested water service were to be provided, the Council may decline the accomplishment of that request. In case of such refusal, having mentioned the reasons for such refusal, the applicant may be replied within 30 days from such decision taking.
- (iii) (a) A private water service receiving customer shall not use the water received from the private water service to any other task other than the tasks mentioned in his application.
- (b) Consequent to being reported that Section iii (a) of this part is violated with regard to a private water service and when a notice has already been served in relation to that, if that violation continues further, the relevant water service may be terminated after a notice served in advance.
- (iv) All the water service connections obtained without due approval of the Council deemed to be illegal water services and when complaints are received about such services, termination of that water service after inspection may be carried out by the relevant Chairman or an officer of the local government authority authorized by him.
16. At anytime it was learnt that water is wasted through a tap, pipe, meter or any other fixation which being a part of a private water service, either the Chairman or an officer may immediately terminate such water service and it shall not be reconnected until the reason for such leakage is rectified by the owner or resident of the place.
17. Subsequent to providing a private water service, if a complaint is made to the relevant local government authority by the relevant customer or any other person that the water is wasted through a part of the water service such as; a tap, pipe, meter or other fixation when the said service is maintained and environmental damage or health threat is caused as a result, the power to inspect about such complaint lies with the Head of the relevant local government authority or his authorized officer.
18. Constant attention should be paid to the purity of water sources used by the local government authority for water supply schemes, their proper existence and security, whereas, they shall be cleaned according to the standards and instructions specified by the National Water Supply and Drainage Board at least every three months.
19. In every occasion of constructing water supply schemes; their continuing, maintaining, service expanding and fee levying by the Council, it shall be bound to provide services based on the principle of justice in order to satisfy minimum water requirements of every person and ethnic group who should receive service from the said water supply scheme.
20. The head of the local government authority or person authorized by him for the task of inspecting the condition of pipes and fixtures of the water supply work; to definitely learn whether the water is wasted or used illegally,

may enter the relevant place or building at any time within 8.00 a.m. to 5.00 p.m. after giving a notification of not less than one hour.

21. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
22. In this by-law unless the context otherwise requires,
“Council” means Wattala – Mabola Urban Council;
“Chairman” means the Chairman of Wattala – Mabola Urban Council;
“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
“Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;
“Person” includes a group of persons incorporated or unincorporated;
“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
23. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

**BY LAW TO CONTROL AND LEVY CHARGES ON PIPE LAYING AND UNDERGROUND CABLE
DRAWING ACTIVITIES OF WATTALA – MABOLA URBAN COUNCIL**

01. This by-law shall be enforced to control pipe laying, cable drawing and excavation activities by various government institutions, semi-government institutions, corporations, boards, companies and persons in thoroughfares maintained by the Urban Council within Wattala - Mabola Urban Council area of authority and to levy charges on such activities.
02. This by law shall be cited as the By law to Control and Levy Charges on Pipe Laying and Underground Cable Drawing Activities of Wattala – Mabola Urban Council.
03. Without possessing a permit obtained after payment of a fee decided by the Wattala – Mabola Urban Council under this by-law, no person or institution shall not carry any excavation activity in any thoroughfare under the control of Wattala – Mabola Urban Council.
04. Prior to carrying out a pipe laying or underground cable drawing or other excavation activity in connection to a thoroughfare subjected under the authority of Wattala – Mabola Urban Council by any institution or person, a permit relevant to such activity should be obtained after forwarding to the Chairman an application that conforms to this by law.
05. Subsequent to recovering from the deposit amount the amount of money spent to restore council’s damaged property, damaged as a result of accomplishing the task mentioned in the permit, if there be any residual money in the deposit amount, such residual money should be released to the person claiming for such deposit amount.
06. When underground excavations are carried out to lay pipes or draw underground cables under this by law, damages should not be made to a thoroughfare, relevant drain, side wall of a drain, abutment wall, culvert,

causeway, dam, bridge, signal post, mile post or to any support constructed on the road for safety or any other thing constructed for public safety and use.

07. Under this by law, if underground excavation activity needs to be carried out again for repairing work of underground pipes or cables, the relevant institution or person shall obtain a permit after paying a fee. Therein, as per provisions in this by law, a permit should be obtained again.
08. At a place where pipes and cables cannot be fixed underground, on the instructions and supervision of an officer authorized by the Chairman, such pipes and cables can be laid on the surface, close to the ground at a most suitable place on road, in a manner not obstructing a street or streets nor causing nuisance to the public.
09. No person holding the permit shall lay underground pipes or cables obstructing the easy flow of water in a drain located in the thoroughfare.
10. As soon as the excavation work is concluded, or, within two weeks, the excavation area should be restored strongly by the permit holder or institution.
11. Suitable actions from among the ones mentioned below shall be taken by the permit holder to minimize travelling and transportation obstructions until restoration of excavation area as specified in this Section.
 - (i) Removal of excavated soil,
 - (ii) Deploying a red flag or any other danger indicating sign,
 - (iii) Deploying red color lights at night time, ,
 - (iv) Naming alternative routes,
 - (v) Deploying watchers,
 - (vi) Erecting danger indicating boards,
 - (vii) Other proper actions.
12. In these By-laws unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
13. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW RELATING TO TYRE TUBE WALKANIZING PLACES AND BATTERY STORING AND REPAIRING PLACES OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to allocate provisions to regularize, supervise, control and levy charges on tyre tube walkanizing places, battery storing and repairing places within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law on Places for Tyre Tube Walkanizing, Battery Storing and Repairing within Wattala – Mabola Urban Council.

3. Unless on a licence issued by the Chairman of the Council for the intended purpose, no person shall maintain tyre walkanizing places or battery storing and repairing places within Wattala – Mabola (hereinafter referred to as ‘area of authority’) Urban Council Area of Authority.
4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
5.
 - (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.
 - (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.
 - (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room.
 - (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement and the remaining part plastered with mortar applied with paints.
 - (iii) The end of eaves shall be more than 2 Meters above the floor level;
 - (iv) The roof shall be made of some solid material;
 - (v) All the wood work should be applied with paints.
 - (vi) The entire floor should be constructed with some solid material.
 - (vii) The premises should be constructed in a manner allowing sufficient water drainage.
 - (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
 - (ix) Sufficient fire extinguishing facilities should be provided to the premises.
 - (x) There shall be sufficient facilities to park vehicles
 - (xi) First-aid facilities should be provided.
 - (xii) Should maintain an accidents list.
8. Every licence holder holding a licence under this by-law:
 - (viii) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
 - (ix) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
 - (x) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins.,

- (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
 - (xi) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
 - (xii) A health insurance program relating to every employee shall be put into operation Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
 - (xiii) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
 - (xiv) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.
9. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.
 10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
 11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
 12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
 13. Every licence holder shall paint the said premises annually during the period of conducting his business.
 14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
 15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
 16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
 17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
 18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.

19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.
20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be pasted on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises, owner or person using the premises in such notice.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
24. In this by-law unless the context otherwise requires,
“Council” means Wattala – Mabola Urban Council ;
“Chairman” means the Chairman of Wattala – Mabola Urban Council;
“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;
“Person” includes a group of persons incorporated or unincorporated;
“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW RELATING TO ADVERTISEMENTS OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law will be enforced for the purpose of regularization, control of advertisements displayed conspicuously to a thoroughfare located within Wattala - Mabola Urban Council area of authority and for levying charges on advertisements advertised thus.
2. This by-law shall be named as the By-law Relating to Advertisements within Wattala - Mabola Urban Council Area of Authority.
3. No person shall display or cause to display any advertisement to be conspicuous to certain road or thoroughfare of Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as ‘area of authority’) unless he possesses a license issued by the Chairman assigning power to do so.

4. For the purposes of this by-law, an advertisement means an electric sign board, banner, cutout or advertisements created by drawing on Aluminium sheets, iron, polythene, fabric or paper, else an advertisement-board set up using galvanized iron or an advertisement displayed on a house, boutique, hotel, wall, boundary wall to promote certain place of trade, trade material or business by using letters or pictures or special advertisements displayed on festive occasions like trade exhibitions and carnivals, and erected to be conspicuous to the main road, byroad, Provincial Council, Urban Council or private road.
5.
 - (i) Every application requesting a license for the display of whatever advertisement shall comply to the format stated in the first schedule herein and shall be forwarded to the Chairman of the Council at least prior to three days of such date on which the said advertisement is meant to be displayed according to the sixth section of this by-law.
 - (ii) The fee charged for an application issued by the Urban Council may be decided by the Council from time to time through a resolution passed at the Council.
6. Every application forwarded under Section 5 of this by-law shall satisfy the following requirements.
 - (1) Ground plan drawn not less than the scale relative to the location of the structure where the advertisement is to be set up.
 - (2) The diagram of that structure drawn in scale not less than 1:1000
 - (3) Amendments, if there be any, so as to comply with these by-laws, exist in that plan, diagram or specification; including such amendments.
 - (4) A copy of the same advertisement drawn in small scale and had all the colors applied that of the advertisement to be displayed.
 - (5) The plan indicating the location of the advertisement in relation to the adjacent roads and main land marks.
7. Unless conforming to plans, diagrams and specifications approved by way of a written document by the Chairman of the Urban Council, no person shall construct or cause to construct within the Urban Council area of authority any advertisement or advertisements or any board, billboard, advertising boards, or any other structure to be utilized for the task of display.
8. Where an application forwarded under this by-law is approved by the Chairman, the applicant shall not be issued with the relevant license until prescribed charges; decided and declared by way of a resolution passed by the Council from time to time, had been paid.
9. Where a license has been issued to a person for displaying an advertisement, the Urban Council shall order the said person to include license reference No. and license holder's name in every advertisement displayed by him.
10. The provisions stated in these by-laws shall not be relevant to any of the advertisements stated below unless such advertisement is illuminated board or sky name board;
 - (a) A notice relating to a concert that deploys the amount of net revenue for charity affairs;
 - (b) An advertisement relating to a concert and displayed on the spot where the said concert is held;
 - (c) An advertisement relating to a religious, political or public meeting;
 - (d) An advertisement stating "to be let on rent" ;
 - (e) An advertisement stating "for sale";
 - (f) House name boards;
 - (g) Name boards utilized for professional activities and not exceeding 0.93 Square Meters in area;
 - (h) A vehicle used for some trade purpose displaying an advertisement indicating the nature of that trade affair or business, owner's name, address, telephone No. and email address.

11. No person shall;
 - (1) display an advertisement on top of a street, road or footpath, or, across or protruding to such street, road or footpath;
 - (2) display an advertisement on a board exceeding 15 meters height from the floor level;
 - (3) fix or let hang an advertisement on the surface of a building facing a street or road or on a name board of a business place or, in a manner exceeding the length of the surface of the said building;
 - (4) construct or set up an advertisement in the nature of sky advertisement without prior approval of the Urban Council.
12. No person shall display an advertisement on a private or public building, place of religious worship, Public Park or on a bridge or overhead passenger bridge, telephone or electricity post, side wall, dam, anicut, culvert, rock, bank or tree.
13. No advertisement shall be constructed or set up in an area specifically indicated in a resolution adopted by the Council and duly published in the *gazette* paper unless it is a board relating to a trade center constructed or set up in accordance to the manner approved by the Chairman of the Urban Council.
14. Without the permission of Chairman of the Urban Council, using a radio, gramophone, musical instrument, a bell or other equipment by any person for the purpose of displaying or introducing any advertisement in a street or road located within the Urban Council area of authority would be illegal.
15. Under this by-law,
 - (1) Where a particular advertisement found to be displaying repulsive or revolting image and causing damage to public morality, the Chairman of the Urban Council by way of a written announcement may order the person advertising the said advertisement to stop displaying the advertisement within a time period specifically notified by that announcement.
 - (2) Any person who has been served a notice under Section 01 of this by-law shall take action as per the said notice within the time specified therein.
16. The owner or lease holder of a board used for displaying advertisements;
 - (i) Shall maintain the said boards in proper repaired state while ensuring safety of persons.
 - (ii) Shall display his name and address in legible letters on the front surface of the board in a clearly visible place.
17. No person shall distort certain logo or number included by Urban Council in an advertisement to indicate that the prescribed licence fee for the display of that advertisement has been paid.
18. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
19. It is lawful for the Urban Council to remove without any prior notice, the advertisements displayed within the Urban Council area of authority without obtaining a license under this by-law.
20. Where certain person or institution has become an offender due to the reason of continuous display of advertisements without obtaining a license or due to contravention of conditions stipulated under this by-law, it is lawful for the Urban Council to blacklist such person or institution regarding advertisement related activities within that Urban Council area of authority.

21. Subsequent to receiving permission to display advertisements, even though the permit's period of validity is valid for a future period, if an advertisement board or a cutout or a banner fixed in any manner or drawn on a wall or parapet wall has become torn, slanted, collapsed or discolored, broken down, changed and affects the attractiveness of the city in whichever manner, within 07 days of handing over a written notice to the relevant owner with regard to such advertisements, measures shall be taken by him to restore it and if such restoration does not take place, it is lawful for the Council to remove such advertisement. Where the Council will have to remove the advertisement by deploying employees of the Council after 14 days of such notice, the Urban Council will not hold whatsoever responsibility regarding the said advertisement.
22. In this by-law unless the context otherwise requires,
 "Council" means Wattala – Mabola Urban Council ;
 "Chairman" means the Chairman of Wattala – Mabola Urban Council;
 "An authorized officer of Urban Council," means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
 "Licensee" means any person who has been issued a licence to carry on a trade under these By-laws;
 "Person" includes a group of persons incorporated or unincorporated;
 "Person assigned with control" means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
23. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

SCHEDULE 01

APPLICATION FOR DISPLAY OF ADVERTISEMENTS

01. Full Name of the Applicant:
02. Permanent Address:
03. Business, festival, exhibition, carnival, meeting or trading material expected to be promoted through the advertisement:
04. Location/ locations where the advertisement is intended to be displayed:.....
05. Has relevant format been attached?:
06. Type of advertisement expected to be displayed (banner, boards, cutouts, wall, parapet wall or permanent):
07. Even after receiving approval to display your advertisement, in the event of such advertisement being discoloured, slanted, torn, collapses on to ground, would you agree to restore it?

I, hereby agree to display the advertisement in accordance to the regulations accepted by the Urban Council and I am well aware that contravention of the relevant by-law or any section therein to be a punishable offence.

Date:-

.....
 (Signature of Applicant)

The following documents have been attached.

- I. Where the advertisement is a permanent one, the letter of consent obtained from the owner of the land where the said advertisement will be set up.
- II. If the advertisement will be drawn on a house, boutique, hotel, wall, parapet wall or any such place, the letter of consent obtained from the owner of the said parapet wall, wall, boutique or hotel.
- III. Details of how land (space) will be used to draw or permanently fix the advertisement.
- IV. The format relevant to the advertisement shall be presented clearly. (subsequent to issuance of the licence, permission will not be allowed to change the format in any way)

BY LAW ON MAINTAINING ADVERTISING SERVICES OF WATTALA – MABOLA URBAN COUNCIL

01. This by law will be enforced to allocate provisions for maintaining advertising services within the Wattala – Mabola Urban Council area of authority, prescribing fees relevant to it and matters consequential to it.
02. This by law shall be cited as the By-law on Advertising Services of Wattala – Mabola Urban Council.
03. From the date of effect of this by law, it is lawful for Wattala – Mabola Urban Council (hereinafter referred to as ‘Council’) to maintain an advertising service in a premises owned by or claimable by the Council within the Wattala – Mabola Urban Council area of authority for Council’s or any other person’s advertising requirement.
04. Under the advertising services stated in this by law, advertising activities that bear the following objectives shall not be relevant.
 - i. Advertisement carried on behalf of certain political party or political group,
 - ii. An advertisement with an inclination of persuasion towards some illegal activity or damaging the culture and ethics.,
 - iii. An advertising that damages or influence a religion of cultural identity,
 - iv. Advertising connected to alcohol, cigarettes or anything of that nature.
05. Advertising services maintained by the Council under this by law may be an advertising activity carried out under a digital hoarding or any type of advertising service decided and implemented on behalf of an advertising activity of Council.
06. Every person requesting for an advertising task for an advertising service maintained through a digital board or any other nature, shall request by way of an application obtained from the Secretary of the Council.
07. Charges levied for advertising services shall be the charges decided and declared after adoption through a proposal-affirmation by the Council from time to time.
08. In every request to obtain advertising services under this by-law, allocation of advertising time shall be based on the priority basis on which applications were received.
09. After paying the relevant fees prescribed under this by-law, in any case the relevant advertisement could not be advertised within the time period reserved for advertising owing to a reason beyond the control of the Council or any other technical reason, the fees relevant to that service shall be charged only in an occasion where the applicant agrees to obtain a fair advertising opportunity in future.
10. It shall be lawful to decide and declare from time to time the related or relevant conditions for every advertising service maintained by the Council.

11. Conditions specified and declared by the Council under Section 10 above shall be enforced as conditions specified under these by law itself.
12. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
13. In this by-law unless the context otherwise requires,

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Secretary” means the Secretay of Wattala – Mabola Urban Council ;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
14. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

**BY LAW RELATING TO INSTITUTIONS PRODUCING PLASTIC AND POLYTHENE RELATED GOODS
OF WATTALA – MABOLA URBAN COUNCIL**

01. This by-law shall be enforced to allocate provisions to regularize, supervise, control and levy charges on institutions producing plastic and polythene related goods within Wattala - Mabola Urban Council area of authority.
02. This by-law shall be cited as the By-law on Institutions Producing Plastic and Polythene Related Goods within Wattala – Mabola Urban Council.
03. Unless on a licences issued by the Chairman of the Council for the intended purpose, no person shall maintain an institution producing plastic and polythene related goods within Wattala – Mabola (hereinafter referred to as ‘area of authority’) Urban Council Area of Authority.
04. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
05. (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.
- (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
06. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
07. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.

- (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room.
- (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement and the remaining part plastered with mortar applied with paints.
- (iii) The end of eaves shall be more than 2 Meters above the floor level;
- (iv) The roof shall be made of some solid material;
- (v) All the wood work should be applied with paints.
- (vi) The entire floor should be constructed with some solid material.
- (vii) The premises should be constructed in a manner allowing sufficient water drainage.
- (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
- (ix) Sufficient fire extinguishing facilities should be provided to the premises.
- (x) There shall be sufficient facilities to park vehicles
- (xi) First-aid facilities should be provided.
- (xii) Should maintain an accidents list.

08. Every licence holder holding a licence under this by-law:

- (xv) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
- (xvi) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
- (xvii) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins.,
 - (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
- (xviii) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
- (xix) A health insurance program relating to every employee shall be put into operation Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.

- (xx) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
 - (xxi) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.
09. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.
 10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
 11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
 12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
 13. Every licence holder shall paint the said premises annually during the period of conducting his business.
 14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
 15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
 16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
 17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
 18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
 19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.
 20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
 21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
 22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be pasted on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises, owner or person using the premises in such notice.

23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
24. In this by-law unless the context otherwise requires,
- “Council” means Wattala – Mabola Urban Council ;
- “Chairman” means the Chairman of Wattala – Mabola Urban Council;
- “Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
- “An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
- “Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;
- “Person” includes a group of persons incorporated or unincorporated;
- “Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

**BY-LAW TO REGULARIZE THE USE OF PUBLIC LAVATORIES
IN WATTALA – MABOLA URBAN COUNCIL**

01. This by-law shall be enforced to allocate provisions to properly maintain and control the clean lavatory system containing sanitary facilities; provided by Wattala – Mabola Urban Council to its public.
02. This by-law shall be cited as the By-law on Public Lavatories of Wattala – Mabola Urban Council.
03. When excreting within a public lavatory, no person shall excrete into other place except the lavatory pan, whereas, when urinating, urine should not be passed to any other place except to the lavatory or place allocated to it.
04. No person shall use the water provided to public lavatory for any other purpose other than the purposes of the lavatory.
05. No person shall dump or place bricks, soil, stones, ash or any other material in a public lavatory or into lavatory pans or into the drains or to other openings so as to block them.
06. Unless at an occasion of repairing a public lavatory; no person shall damage, remove, block or change in any way the manner a lavatory pan, pipe, valve, tank or any other fixation had been fixed, or its location or order; nor shall any wall, floor, roof or structure of the said lavatory be destructed, distorted, damaged or scratched deliberately.
07. Only females should enter a public lavatory allotted for females and only males should enter a public lavatory allotted for males, whereas, at times of cleaning or repairing, doors should be closed and closure should be announced by way of a notice in Sinhala, Tamil and English languages displayed at the entrance while persons assigned with cleaning or repairing work perform them.
08. Within the city, no person shall excrete or urinate at any other place other than in a lavatory.
09. A legal order made by a helper, watcher, employee or caretaker of a public lavatory, while performing his duty shall not be defaulting or obstructed.

10. A public lavatory should only be used to excrete or urinate while taking care to prevent from smoking or using narcotics or loitering inside it.
11. Where the maintenance and custody of a public lavatory has been assigned to a private sector, the lavatory should be maintained in daily-washed condition through the assignee. If any fee is charged for the maintenance of the lavatory, the relevant fee should be displayed by way of a notice at the entrance to be conspicuous prior to entering.
12. The lavatory should always be maintained in cleanly and sanitary condition, wherein, it shall be maintained in proper condition having cleaned with antiseptic and washed daily.
13. When the public lavatory has been assigned to a person or to other institution or it is maintained by the Council, a fee decided by the Council may be levied from the users to cover up the expenses relevant to it. The amount of money chargeable by him to meet up expenses may be decided by the Council from time to time. The said person may charge only that amount from the lavatory user.
14. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
15. In these By-laws unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Authorized officer” means the officer authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
16. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW RELATING TO PLACES MAINTENANING PRIVATE HOSPITALS AND LABORATORY SERVICES OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to allocate provisions to regularize, supervise, control and levy charges on private hospitals and laboratory services within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law on Private Hospitals and Laboratory Services Maintaining Places within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as the ‘area of authority’)
3. Unless on a licence issued by the Chairman for the intended purpose, no person shall maintain a place for private hospital and laboratory Service (hereinafter referred to as ‘premises’) within the urban council area of authority.
4. Every licence issued shall be valid up to 31st of December of the year for which it had been issued unless it is cancelled earlier.
5. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence to maintain a place for private hospitals and laboratory services.
 - (i) The premises should be provided with fire extinguishing facilities, whereas, an assurance that a supervision by a reputed institution with regard to the fire extinguishing equipment takes place.

- (ii) There shall be sufficient facilities to park vehicles
 - (iii) Sufficient sanitary facilities should be provided within the premises.
 - (iv) Facilities should have been allotted to discharge the disposed waste water to outside without danger.
 - (v) The premises should have been constructed allowing sufficient water drainage.
 - (vi) Equipment and tools maintained within the premises should be of proper condition and kept in proper maintenance.
6. Every licence holder shall store all materials necessary for carrying on the trade in such a manner that no offensive odours will emanate from them or create any nuisance.
7. A licence holder, when taking away things that can cause offensive odours or nuisances from the licensed premises along public thoroughfares, shall take them in closed non-absorbent vessels to prevent odours or nuisances.
8. Every licence holder, shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
9. Inspection of machinery by every licence holder shall be from 6.00 a.m. to 6.00 p.m.
10. Every licence holder, shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
11. Every licence holder, shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
12. shall dispose the waste collected in the premises according to the waste management program of the Council..
13. Every licence holder shall paint the said premises annually during the period of conducting his business.
14. Every licence holder shall keep all the tools including equipment and utensils used in the business activities cleanly.
15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further and to remove them daily in the manner prescribed by the Urban Council.
16. Every licence holder shall wash and clean the tanks that are used to wash or soak other material after emptying them to prevent stinking.
17. It shall be lawful for the Chairman or any Officer of the Urban Council specially authorized by the Chairman for the relevant purpose to enter premises during official hours and to inspect the premises. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspections.
18. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has the power to cancel the licence at such an occasion.
19. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
20. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence, at a conspicuous place in the licence holding premises.

21. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be hanged on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises owner or person using the premises in such notice.
22. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance
23. In this by-law, unless the context otherwise requires,
 - “Council” means Wattala – Mabola Urban Council ;
 - “Chairman” means the Chairman of Wattala – Mabola Urban Council;
 - “Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
 - “An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
 - “Person assigned with control” means an officer or officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law.
 - “Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;
 - “Person” includes a group of persons incorporated or unincorporated;
 - “Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
24. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW ON OBTAINING OF INFORMATION TO PRESCRIBE A TAX AND FEE OF WATTALA – MABOLA URBAN COUNCIL

1. This by law shall be enforced to make provisions to obtain relevant information to prescribe a tax or fee for premises within the Wattala – Mabola Urban Council area of authority.
2. This by law shall be cited as By-law On Obtaining of Information to Prescribe a Tax or Fee for a Premises within Wattala – Mabola Urban Council.
3. All the businesses and industries functioning within Wattala – Mabola Urban Council area of authority shall maintain clear accounts records according to an accepted accounting system.
4. Providing information, copies relevant to all the finances and accounts requested by the Chairman or his authorized officer is the duty of every person subject to a tax or fee under the Urban Councils Ordinance.
5. Information of all the businesses and industries and term reports on financial accounts relating to all the businesses and industries, presented upon a request made by Chairman or his authorized officer from time to time, shall be prepared on accepted financial and accounting concepts.
6. All the financial and accounts reports forwarded by the 5th by-law above shall be reports certified and inspected by an accepted accounts examiner.
7. Whoever person, upon receiving a notice served by the Chairman of Wattala – Mabola Urban Council or his authorized Officer, shall forward to Chairman the information required by such notice within 14 days from the date of receipt of such notice by him.

8. Information forwarded to the Chairman shall be true and facts should not be kept unrevealed.
9. Where the details pertaining to term reports requested under the above Section 5 needs to be inspected, it shall be lawful for the Chairman or his authorized officer to enter the relevant business place or industry premises to inspect the truthfulness of said books.
10. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
11. In this by-law unless the context otherwise requires,
“Chairman” means the Chairman of Wattala – Mabola Urban Council;
“Council” means Wattala – Mabola Urban Council ;
“Authorized officer” means an officer authorized by the Chairman
12. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

**BY LAW RELATING TO BATTERY STORAGE AND REPAIRS OF
WATTALA – MABOLA URBAN COUNCIL**

1. This by-law shall be enforced to make provisions to regularize, supervise, control and levy charges on battery storage and repairs within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law Relating to Battery Storage and Repairs of Wattala – Mabola Urban Council.
3. Unless on a licence issued by the Chairman for the intended purpose, no person shall maintain a battery storage and repair facility within Wattala – Mabola urban council area of authority (hereinafter referred to as ‘area of authority’).
4. Every licence issued shall be valid up to 31st of December of the year for which it had been issued unless it is cancelled earlier.
5. (i) Every person applying for a licence under this by law shall apply for it under an application conforming to this by-law and obtained from the Council.
(ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.
 - (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room.

- (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement at least up to 2 Meters from the floor level and the remaining part plastered with mortar applied with paints.
- (iii) The end of eaves shall be more than 2 Meters above the floor level.
- (iv) The roof shall be made of some solid material.
- (v) All the wood work should be applied with paints.
- (vi) The entire floor should be constructed with some solid material.
- (vii) The premises should be constructed in a manner allowing sufficient water drainage.
- (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
- (ix) Sufficient fire extinguishing facilities should be provided to the premises.
- (x) There shall be sufficient facilities to park vehicles.
- (xi) First-aid facilities should be provided.
- (xii) Should maintain an accidents list.

8. Every licence holder holding a licence under this by-law,

- (xxii) shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
- (xxiii) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
- (xxiv) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins;
 - (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
- (xxv) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
- (xxvi) A health insurance program relating to every employee shall be put into operation.
- (xxvii) Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
- (xxviii) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
- (xxix) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.

9. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.
10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
13. Every licence holder shall paint the said premises annually during the period of conducting his business.
14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking
17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.
20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be hanged on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises owner or person using the premises in such notice.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice

drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.

24. In this by-law unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.

25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW ON THOROUGHFARES OF WATTALA – MABOLA URBAN COUNCIL

1. This by law shall be enforced to make provisions to prevent obstructions and other type of mediations to thoroughfares within Wattala – Mabola Urban Council area of authority functioning under the general authority of Wattala – Mabola Urban Council.
2. This by law shall be cited as the By-law on Thoroughfares of Wattala – Mabola Urban Council.
3. In order to maintain the thoroughfares subjected to Council’s authority and located within Wattala – Mabola Urban Council area of authority (hereinafter referred to as ‘area of authority’) in proper and quality condition, a grading shall be made in the manner stated in the schedule below.
4. The Chairman shall not issue the relevant permit until the deposit amount prescribed to the applicant according to the estimate made, based on the amount of damage caused to thoroughfares that has been stated in the application forwarded under this by-law has been paid, and the receipt relevant to such payment is forwarded.
5. A road inventory shall be maintained including information detailed as scheduled property to include all the thoroughfares graded by the Council .
6. Culverts and bridges connecting to all the thoroughfares functioning under Council’s general authority, should be numbered and documented.
7. It shall be lawful for the Chairman to display a notice permanently or for certain time period for protection and in order to prevent the developing or developed thoroughfare being subjected to damage causing activities:
 - (i) Entry of vehicles prohibited;
 - (ii) One direction traffic;
 - (iii) Entry of heavy vehicles prohibited ;
 - (iv) Road closed;
8. No person, with regard to whatever thoroughfare relevant to this by law shall,

- (xxx) Construct an access way obstructing water receding drain, culvert or take any other measure;
 - (xxxi) Store or collect materials or goods, obstructing transportation;
 - (xxxii) Not cause to grow a tree protruding to a thoroughfare or to a drain, culvert therein or cause its branches to protrude towards such;
 - (xxxiii) Not carry out any permanent or impermanent construction, fixation or decoration in a manner damaging a thoroughfare;
 - (xxxiv) Not dispose waste water or waste to a thoroughfare or to a drain therein;
 - (xxxv) Not hold festivals in a manner obstructing a thoroughfare.
9. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance
10. In this by-law unless the context otherwise requires,
- “Council” means Wattala – Mabola Urban Council ;
- “Chairman” means the Chairman of Wattala – Mabola Urban Council;
- “Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;
- “An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
- “Person assigned with control” means an officer or officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;
- “Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;
- “Person” includes a group of persons incorporated or unincorporated;
- “Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
11. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

**BY LAW ON INSTITUTIONS ENGAGED IN IRON AND STEEL INDUSTRY
IN WATTALA – MABOLA URBAN COUNCIL**

1. This by-law shall be enforced to allocate provisions to regularize, supervise, control and levy charges on institutions engaged in iron and steel industry within Wattala - Mabola Urban Council area of authority.
2. This by law shall be cited as the By-law on Institutions Engaged in Iron and Steel Industry within Wattala – Mabola Urban Council.
3. Unless on a licence issued by the Chairman of the Council for the intended purpose, no person shall maintain an institution engaged in iron and steel industry within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as ‘area of authority’).

4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
5. (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.
- (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a resolution passed therein.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person therein shall have the right to obtain a licence under this by-law:
 - (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, and when opened, shall consist of windows that have an area not less than one fifteenth from the floor area of the room;
 - (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement at least up to a height of 2 Meters and the remaining part should be plastered with mortar and applied with paints;
 - (iii) The end of eaves shall be more than 2 Meters above the floor level;
 - (iv) The roof shall be made of some solid material;
 - (v) All the wood work should be applied with paints;
 - (vi) The entire floor should be constructed with some solid material;
 - (vii) The premises should be constructed in a manner allowing sufficient water drainage;
 - (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises;
 - (ix) Sufficient fire extinguishing facilities should be provided to the premises;
 - (x) There shall be sufficient facilities to park vehicles;
 - (xi) First-aid facilities should be provided ;
 - (xii) An accidents list should be maintained;
8. Every licence holder holding a licence under this by-law,
 - (xxxvi) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
 - (xxxvii) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
 - (xxxviii) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins:
 - (a) bio degradable waste ;
 - (b) glass ;

- (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
 - (xxxix) Employees employed in the institution should be provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
 - (xl) A health insurance program relating to every employee shall be put into operation.
 - (xli) Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
 - (xlii) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
 - (xliii) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.
9. Every licence holder shall store all the material and other required material used for the relevant industry without causing bad smell to emanate or causing any nuisance.
10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
12. Every licence holder shall construct the floor of the premises with some opaque material and maintain it in good repair and shall cause them to be washed daily.
13. Every licence holder shall paint the said premises annually during the period of conducting his business.
14. Every licence holder shall keep all the tools including equipment and utensils used in the business activities, cleanly.
15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them in the manner prescribed by the Chairman.
16. Every licence holder shall wash and clean the tanks that are used to wash or soak other materials after emptying them to prevent stinking.
17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the

duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.

20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence, it shall be his duty to inform the applicant so, along with reasons for his refusal.
21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be hanged on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises owner or person using the premises in such notice.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
24. In these By-laws unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW RELATING TO RENTING OUT OF MACHINERY OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to allocate provisions for a machinery rent out service by Wattala - Mabola Urban Council and to allocate for matters consequential to it, including levying of charges on such services. .
2. This by-law shall be cited as the By-law Relating to Machinery Renting out Service of Wattala – Mabola Urban Council.
3. A person expecting a machinery renting out service (hereinafter referred to as a ‘service’) within Wattala – Mabola Urban Council, shall apply for it under an application obtained from an officer specifically authorized by the Council for the said task .
4. The charges for an application under this by law shall be the charges decided and declared from time to time by the Council.

5. With regard to an application forwarded expecting a service under this by law and when the Secretary is satisfied that the ability is there to provide the relevant service under the date and time of request of that service, it is lawful to provide that service after the payment of specified fees for such service and additional deposit money.
6. Prior to charging the specified charges as per the above Section, the Secretary shall take the following matters into consideration.
 - (i) To provide the relevant service on the day and on the time requested for, would not affect the duties and functions of the Council,
 - (ii) Whether there are sufficient facilities to provide service requested,
 - (iii) Charges have not been levied from another person to provide a service on the same day and time of the request,
 - (iv) Under the request made, the applicant has provided the relevant information in the relevant manner..
7. Specific fees charged under the above Section 5 and the monetary deposits chargeable in relation to each service shall be decided and declared from time to time by way of a resolution passed by the Council.
8. Where fees have been charged in relation to an application forwarded expecting a service, due to the reason of giving priority to a matter relating to public welfare, if the service could not be provided as agreed upon, action shall be taken to provide the relevant service as soon as possible and according to applicant's agreement.
9. When the applicant refuses to obtain the relevant service he/she agreed earlier, and when such refusal is announced two days before the date on which the relevant service was to be given; having retained ten percent from the fee charged, the remaining amount should be released to the applicant. However, when such refusal is made after three days of the date of agreement, twenty five percent from the fee charged should be retained while releasing the remaining amount to the applicant.
10. When working in agreement to provide the service, in any case the service-providing could not be made owing to access way being insufficient (based on the details provided by the applicant) or due to any other matter that relies under applicant's control, charges levied initially for such service should not be released.
11. When providing a service under this by law, having to provide the service for a time period exceeding the time period agreed upon, or, when certain damage is caused to a machinery or equipment under the applicant's or his assistants' control, if there be any amount receivable to the Council on behalf of that, having deducted the said amount from the deposit money paid by the applicant, the remaining amount should be paid to him within three days of accomplishment of the service.
12. When accomplishing services under this by law, the applicant should be responsible with regard to whatever damage caused to another party on the persuasion or consent of the applicant.
13. When the service hours are calculated under this by law, the Council shall decide and declare from time to time about the criteria to be considered in that regard.
14. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
15. In this by-law unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Authorized officer,” means the officer authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Machinery” means a gully bowser, motor grader, road flattening machine or any other utensil used for a technical work or an industry or a similar work.

16. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW ON MACHINERY SERVICES MAINTAINING PLACES OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to allocate provisions to regularize, supervise, control and levy charges on machinery services maintaining places within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be cited as the By-law on Machinery Services Maintaining Places within Wattala – Mabola Urban Council (hereinafter referred to as the ‘area of authority’).
3. Unless on a licence issued by the Chairman of the Council for the intended purpose, no person shall maintain a Machinery Service Maintaining Place (hereinafter referred to as the ‘premises’). within Wattala – Mabola Urban Council Area of Authority.
4.
 - (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.
 - (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
5. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
6. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.
 - (i) Sufficient spatial facilities should be available to retain, store and park machinery within the premises, wherein, the relevant spaces should be allotted specifically.
 - (j) There shall be sufficient facilities to park vehicles
 - (k) The premises should be constructed in a manner allowing sufficient water drainage.
 - (l) Sufficient sanitary facilities shall be provided in the premises.
 - (m) Fire extinguishing facilities as specified by the time of plan approval should be provided to the premises.
 - (n) Facilities for First-aid should have been provided.
 - (o) Should maintain an accidents list.
8.
 - (i) All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder receiving a licence under this by law.
 - (ii) When taking away things that can cause offensive odours or nuisances from the licensed premises along public thoroughfares, they shall be taken in closed non-absorbent vessels to prevent odours or nuisances.

- (iii) shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
 - (iv) Inspecting the working condition of machinery by every licence holder shall be from 6.00 a.m. to 6.00 p.m..
 - (v) Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
 - (vi) Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
 - (vii) Every licence holder shall dispose the waste collected in the premises according to the waste management program of the Council..
 - (viii) machinery should not be repaired within the premises.
 - (xi) Every licence holder shall paint the said premises annually during the period of conducting his business.
 - (x) Every licence holder shall keep all the tools including equipment and utensils used in the business activities cleanly.
 - (xi) Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further and to remove them daily in the manner prescribed by the Urban Council.
9. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
10. It shall be lawful for the Chairman or any Officer of the Urban Council specially authorized by the Chairman for the relevant purpose to enter premises during official hours and to inspect the premises. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspections.
11. Through such an inspection where a licensed premises is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has the power to cancel the licence at such an occasion.
12. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
13. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence, at a conspicuous place in the licence holding premises.
14. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be sufficient to paste it at a conspicuous place in the licenced premises.
15. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further

and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.

16. In these By-laws unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Person assigned with control” means an officer or officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law.

“Licence holder” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.

17. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW RELATING TO WOODEN GOODS MANUFACTURING INSTITUTION OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to allocate provisions to regulate the maintenance of , supervise, control and levy charges on institutions manufacturing wooden goods within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be named as the By-law Relating to Wooden Goods Manufacturing Institutions within Wattala - Mabola Urban Council Area of Authority.
3. Unless on a licence issued by the Chairman of the Council for the intended purpose, no person shall maintain a Wooden Goods Manufacturing Institution within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as ‘area of authority’).
4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
5. (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.

(ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.

- (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room.
- (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement and the remaining part plastered with mortar applied with paints.
- (iii) The end of eaves shall be more than 2 Meters above the floor level;
- (iv) The roof shall be made of some solid material;
- (v) All the wood work should be applied with paints.
- (vi) The entire floor should be constructed with some solid material.
- (vii) The premises should be constructed in a manner allowing sufficient water drainage.
- (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
- (ix) Sufficient fire extinguishing facilities should be provided to the premises.
- (x) There shall be sufficient facilities to park vehicles
- (xi) First-aid facilities should be provided.
- (xii) Should maintain an accidents list.

8. Every licence holder holding a licence under this by-law:

- (xliv) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
- (xiv) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
- (xlv) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins.,
 - (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
- (xlvii) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
- (xlviii) A health insurance program relating to every employee shall be put into operation Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
- (xlix) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.

- (l) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.
9. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.
 10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
 11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
 12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
 13. Every licence holder shall paint the said premises annually during the period of conducting his business.
 14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
 15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
 16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
 17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odourous or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
 18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
 19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.
 20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
 21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
 22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be pasted on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises, owner or person using the premises in such notice.
 23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further

and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.

24. In this by-law unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.

25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW RELATING TO LATHE MACHINE WORKSHOP AND IRON RELATED INDUSTRIES OF WATTALA – MABOLA URBAN COUNCIL

1. This by-law shall be enforced to allocate **provisions** to regularize the maintenance of lathe machine workshop and iron related industries within Wattala - Mabola Urban Council area of authority; and to supervise, control and levy charges on such institutions.
2. This by-law shall be named as the By-law Relating to Lathe Machine Workshop and Iron Related Industry within Wattala - Mabola Urban Council Area of Authority.
3. Unless on a licence issued by the Chairman of the Council for the intended purpose, no person shall maintain a lathe machine workshop and Iron Related Industry within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as ‘area of authority’).
4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.
5. (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.

(ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.

- (v) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room.
- (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement and the remaining part plastered with mortar applied with paints.
- (iii) The end of eaves shall be more than 2 Meters above the floor level;
- (iv) The roof shall be made of some solid material;
- (v) All the wood work should be applied with paints.
- (vi) The entire floor should be constructed with some solid material.
- (vii) The premises should be constructed in a manner allowing sufficient water drainage.
- (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
- (ix) Sufficient fire extinguishing facilities should be provided to the premises.
- (x) There shall be sufficient facilities to park vehicles
- (xi) First-aid facilities should be provided.
- (xii) Should maintain an accidents list.

8. Every licence holder holding a licence under this by-law:

- (li) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
- (lii) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
- (liii) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins.,
 - (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;
 - (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
- (liv) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
- (lv) A health insurance program relating to every employee shall be put into operation Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
- (lvi) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
- (lvii) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.

9. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.
10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
13. Every licence holder shall paint the said premises annually during the period of conducting his business.
14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.
20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
21. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be pasted on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises, owner or person using the premises in such notice.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice

drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.

24. In this by-law unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.

25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.

BY LAW ON PUBLIC LIBRARIES OF WATTALA – MABOLA URBAN COUNCIL

1. This by law shall be enforced to make provisions to maintain a library service by Wattala – Mabola Urban Council for the urban council area of authority, including matters consequential to it.
2. This by law shall be cited as the By law on Library Services of Wattala – Mabola Urban Council.
3. The public library service of Wattala – Mabola Urban Council may consist of the following sections and services.
 - (i) Lending section
 - (ii) Reference section
 - (iii) Children’s section
 - (iv) Magazine section and Newspaper section
 - (v) Audio-visual and Information Technology section
 - (vi) Study section
 - (vii) Archives Section
 - (viii) Specific collection and Regional collection
 - (ix) Information and documentation services
 - (x) Mobile library service
 - (xi) Photocopy service
 - (xii) Internet service
 - (xiii) Other information services
 - (xiv) Community information service
4. There shall be a Librarian for the main public library of Wattala – Mabola Urban Council and for library branches functioning under it. The person appointed thus shall take action pertaining to organization, management and proper maintenance of all the services of public library and library branches attached to it as well as of reading halls.
5. There shall be a library consulting committee hereinafter referred to as “Committee” to consult and guide the chief librarian to properly maintain the public library service of Wattala – Mabola Urban Council, hereinafter referred to as “library service”.

6. (i) The consulting committee for library service shall consist of the following composition:
 - (a) Chairman
 - (b) Two Councilors from among the Councilors of the Council; decided by the Council
 - (c) Three important persons residing in the council area of authority; decided by the Council
 - (d) Three religious leaders
 - (e) Secretary of the Urban Council
 - (f) Community Development Officer
 - (g) Chief Librarian of the Council
 - (h) Chairmen of library reader's associations
 - (i) A Principal from a school located in the area of authority
 - (ii) The quorum for the Consulting Committee is one third from the total number of members
 - (iii) Chairman shall *ex-officio* become the chairman of the Consulting Committee, and shall preside in every meeting. In the absence of the Chairman, a member selected and appointed from the members present, shall preside the relevant meeting.
 - (iv) The Secretary of the Council shall become the convener for the Consulting Committee, whereas the Librarian of the Urban Council's main library shall become the Secretary of the Committee
7. (i) whoever person expecting the library service, shall apply to the Librarian to obtain its membership by way of an application obtained from the library.
 - (ii) unless the application forwarded to obtain the membership has been certified by a person stated below and filled duly, he/she shall not be granted with library membership.
 - (a) A member of the Library Consulting Committee
 - (b) A religious leader
 - (c) A Councilor representing the Council
 - (d) An attorney-at-law or Justice of Peace
 - (e) A Staff Officer of public or provincial public service
 - (f) In case of school applicant, the class-teacher or Principal of the school
8. Regarding the services of the Lending Section of the library service,
 - (i) Unless he is a library member possessing a membership card, obtained after paying the fees decided and declared from time to time by the Council upon a resolution passed therein, no other person shall be included as a member of the library's lending section.
 - (ii) A person requesting for a membership at the lending library service, shall apply for it by way of an application issued by the Council and every such person;
 - (a) should have an appropriate guarantor signed in the application,
 - (b) Should have exceeded 03 years of age,
 - (c) should be a resident of urban council area of authority or a person engaged in a permanent job within the urban council area of authority.
 - (iii) The maximum number of books issuable for a membership card at a time at the lending library should be equal to the number of books marked specifically in the cards. However, the number of books issuable at a time for a senior citizen member should be four.
 - (iv) In place of a guarantor required by this section, the Principal of the school may be considered with regard to a school applicant, whereas, it shall be lawful to have been paid to the Council a specified amount of guarantee money, decided by the Council.

9. With regard to every book obtained by a member under the cards issued to him by a lending library, the relevant member shall personally hold the responsibility.
10. In case a member of the lending library loses the cards issued to him under the above by laws, he shall inform the Librarian regarding such loss. If the Librarian is satisfied that a book has not been borrowed from the lending library to the said card, the member will be issued with a new card. Unless a 30 day lapse has taken place from the date of notifying the loss of the card, the Librarian shall not issue a new card.
11. A book obtained from the library by a member of the lending section shall hand it over to the Librarian within a time period of 14 days from the date of its borrowing. If such book has not been requested by another member and if the person obtained it request for an extension, the Librarian shall allow the said member to borrow the book for a period of 14 days.
12. Where returning of a book borrowed from the lending section is being defaulted further even after the specified time period or after the extension time period, in such occasion, it shall be lawful to charge an additional fee as decided by the Council in relation to the time period the book's return has been defaulted.
13. Where a member has defaulted returning of a book borrowed from the lending library within a time period of 30 days, that book shall deem to have been lost.
14. When a book borrowed by a member is lost or considered as lost, expenses related to repurchasing of such book and a departmental charge of 25% from that book's current value should be paid by that member. If the lost book was a bound one, binding charges shall be levied separately.
15. A member should not damage a book borrowed from the lending library or distort it in any way.
16. It shall be the responsibility of every member to inform the Librarian about a damage or distortion caused to a book he/she expects to borrow from the lending section. Where notifying the Librarian with regard to such damage or distortion has been defaulted by any member, such book should be considered as issued without damage or distortion.
17. Where the Librarian is satisfied that a book returned by a member has been damaged or distorted by the member to a degree it is inappropriate to issue again, that member is bound to bear the expenses required for re-purchasing of such book. After re-purchasing the said book, the damaged book should be stamped as "a damaged book sold by the Public Library" and hand it over to the said member.
18. No member shall transfer a book or card obtained from the lending section.
19. No book known to be used by a person suffering from a contagious or infectious disease, shall not be returned to the library by any member, whereas, the expenses incurred in re-supply of the same book shall be paid by the member.
20. Where there is a controversy, created between two members or more in the lending library as to which member should be given a particular book, the Librarian's decision regarding such matter shall be the final decision.
21. When a member expects to borrow a book taken away by another member; he shall write his name and name of the book in a register allocated to that task.

When the member who has taken away the said book returns it; the Librarian shall issue it to the member who has written down his name in the register. Where the names of two or more than two members have been written down in the register, the said book should be issued to them in the order of names written down in the relevant register.

22. A member who releases himself from the qualifications required for the membership at the lending section, he shall forward the relevant membership card to the Librarian to get his membership terminated.

23. The functioning date and time period of the lending section may be decided by the Council from time to time and recommendations of Library Consulting Committee should be obtained in that regard. Further, it shall be the duty of the Chief Librarian to suitably inform all the members in that regard.
24. When a book borrowed by someone has not been returned based on the following mentioned reasons, the decision pertaining to charging for or removal of the said book from the register shall be taken by the Council on the recommendation of the Library Consulting Committee.
 - (i) On the death of the member.
 - (ii) Due to natural disaster such as floods, fires, landslides and hurricanes.
 - (iii) When it has been established that a certain book borrowed by a member has not yet been returned, wherein, the whereabouts of the member is not known for he has changed his residence and all the efforts have been taken to retrieve the said book.
25. Days of closure for the lending library shall be decided by the Council from time to time.

Reference Section

26. The opening hours for the reference section shall be decided by the Council on the recommendations of the Consulting Committee and it should have been announced to make it a well-known fact. Unless the Librarian's permission has been obtained to use the reference section library, or signed in the register kept in the reference section no member of the library shall use the reference library.
27. Nobody shall take a book issued to him for reading by the reference library shall be taken out of the reference library.
28. Books of following nature should be included into the reference library.
 - (i) Books that have already been approved by the Library Services Board as suitable for the reference section.
 - (ii) Except novels and short stories, scarce books with a greater value.
 - (iii) Books belonging to the subjects of medicine, accounting, law and other specific subjects such as science
 - (iv) Books recommended by the Librarian to be included into the reference section and received approval of the Library Consulting Committee.

Reading Hall

29.
 - (i) No person shall use the reading hall unless he has obtained the permission of the Librarian or authorized officers for the relevant task and signed in the register kept in the reading hall.
 - (ii) Anyone not below 08 years of age may be allowed to use the reading hall.
30. No newspaper, quarterly, magazine, map, *Gazette* paper or part of it or any other document kept in the reading hall or belonging to the reading hall shall not be removed by anyone from the reading hall.

Children's Section

31. A section for reading for children below 12 years of age may be maintained separately.
32. Children's books should be supplied within this section to increase children's interest in reading.

33. On recommendations of the Library Consulting Committee, special programs may be put into operation for the development of the children's section.

Mobile Section

34. A mobile library service may be conducted by the Urban Council targeting community boards.
35. The Urban Council shall subject to the recommendations of the Library Consulting Committee with regard to maintaining a mobile library.
36. Mobile library maintained by the Urban Council shall consist of a lending section and all the provisions stated in this by law with regard to the lending section, with slight changes where necessary, be applicable to the mobile library.
37. It shall be the duty of the Mobile Librarian's and Assistant Librarian's to prepare a monthly report pertaining to the functioning of the mobile library including details of issuances and retrievals and to submit it to the Chief Librarian.
38. An annual survey on library's assets should be carried out by the relevant local government authority.
39. The minimum number of members for the Library Survey Board should be three, whereas, the maximum number of members should consist of odd number according to the requirement. One member of this survey board shall be a representative of Assistant District Local Government Commissioner's representative.
40. Survey lists to be presented before the Board of Survey should be completed before 15th of January of the following year and should be submitted to the Council by the Librarian.
41. Subsequent to presentation of the library survey list, for a particular year, having appointed the survey board as at 10th December of the previous year and having completed the Board of Survey affairs as at 31st January of the relevant year, the relevant report should be presented to the Council.
42. Implementing the recommendations of the survey board prior to 15th of March of the relevant year subsequent to the report of the survey board is accepted by the Council, and reporting to the Commissioner of Local Government about it shall be the duty of the Chief Librarian.
43. A person suffering from a contagious disease or epidemic disease or skin disease or has recently suffered from such disease or has recently nursed a patient suffering such disease shall not enter any section of the library until the incubation period or contamination period of such disease elapses.
44. No one shall -
- (i) behave in unsuitable manner or do any nuisance inside the library or near it, or
 - (ii) cause damage or distort in any manner within the library or any part or property of the urban council building lying adjacent to it, or
 - (iii) retain in or loiter in the library premises after its closure without telling any acceptable detail about oneself, or
 - (iv) smoke or spit within the premises of library, or
 - (v) engage in gambling or in any other sport within the library premises
 - (vi) trouble library users by yelling or singing or by making any other sound inside the library, or
 - (vii) enter library in dirty manner, or
 - (viii) bring in a dog or any other animal to the library, or
 - (ix) sleep in any part of the library or eat food, or
 - (x) obstruct the Librarian or other person functioning on his instructions to legally use powers assigned to him under these by laws.

45. Contravening whatever provision under Section 44 of this by law deem to be an offence and subsequent to being convicted before a Magistrate Court with regard to such offence, he/she shall subject to a penalty under Section 153 of Urban Councils Ordinance.
46. Charges levied for photocopy services provided under the library service and in relation to other information services shall be the charges decided and declared by the Council from time to time after a resolution passed in the Council.
47. Unless relevant fees are paid and relevant receipts are forwarded with regard to service charges payable under Section 46 above, no person shall be considered as have a right to the relevant service.
48. Whoever library member expecting the services under the reference section, audio-visual and information communication section, academic section, special collection and regional collection and Information and documentation services, shall not use books under the respective section unless he/she has obtained the permission from the Chief Librarian or Librarian in charge of the relevant section and after stating his/her identity in the register kept at the relevant section.
49. A book or other library material issued to one under the sections explained in Section 48 shall not be taken out of the relevant section. However, when a photocopy service is in operation, with the permission of the Chief Librarian or Librarian in charge of the relevant section and under the custody of an officer named by him/her, taking out a book for the purpose of photocopying shall be legal.
50. Based on the recommendations of the Library Consultation Committee, the Council shall decide the days of the week and time periods to keep open the Reading Hall functioning under the Library service, whereas, any person above 8 years of age wanting to use it may use it by stating down his/ her identity in the register kept at the Reading hall.
51. In this By-law unless the context otherwise requires,
“Library” means the Central Library, Public Library maintained by Wattala – Mabola Urban Council ;
“Chairman” means the Chairman of Wattala – Mabola Urban Council;
“Authorized officer” means the officer specifically authorized by the Librarian
52. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail..

**BY LAW RELATING TO VEHICLE PAINTING AND TINKERING PLACES OF
WATTALA – MABOLA URBAN COUNCIL**

1. This by-law shall be enforced to allocate provisions to regulate the maintenance of , supervision, control and levy charges on Vehicle Painting and tinkering places within Wattala - Mabola Urban Council area of authority.
2. This by-law shall be named as the By-law Relating to Vehicle Painting and Tinkering Places within Wattala - Mabola Urban Council Area of Authority.
3. No person shall maintain vehicle painting and tinkering places within Wattala – Mabola Urban Council Area of Authority (hereinafter referred to as ‘area of authority’) unless he possesses a license issued by the Chairman assigning power to do so.
4. Every licence issued under this by-law, unless cancelled earlier, shall be valid up to thirty first of December of the year for which it was issued.

- (i) Every person requesting for a licence under this by-law shall apply for it by way of an application conforming to this by-law and obtained from the Council.
 - (ii) The charges for an application under this section shall be the charges decided and declared from time to time by the Council.
6. Charges levied for issuance of a licence under this by-law shall be the charges decided and declared by the Council from time to time by way of a proposal-affirmation.
7. Where there is a permanent building in the premises utilized for the task specified in this by-law, it shall be a building constructed according to a plan approved by the Chairman and unless that premises conforms to the following conditions, no person shall have the right to obtain a licence under this by-law.
- (i) The premises should be of proper renovated condition and constructed in a manner allowing sufficient air and light into it and every room, when opened, shall consist of windows that have an area of one fifteenth from floor area of the room.
 - (ii) While the height of the walls of all rooms shall not be less than 2.14 Meters and built with bricks, granite, cabook blocks or cement blocks. Insides of the walls shall have been plastered with cement and the remaining part plastered with mortar applied with paints.
 - (iii) The end of eaves shall be more than 2 Meters above the floor level;
 - (iv) The roof shall be made of some solid material;
 - (v) All the wood work should be applied with paints.
 - (vi) The entire floor should be constructed with some solid material.
 - (vii) The premises should be constructed in a manner allowing sufficient water drainage.
 - (viii) Sanitary bins and sufficient lavatory facilities shall be provided in the premises.
 - (ix) Sufficient fire extinguishing facilities should be provided to the premises.
 - (x) There shall be sufficient facilities to park vehicles
 - (xi) First-aid facilities should be provided.
 - (xii) Should maintain an accidents list.
8. Every licence holder holding a licence under this by-law:
- (lviii) Shall maintain the waste collected within the premises in closed bins and not causing nuisance until they are disposed properly.
 - (lix) The material required for the industry should be kept stored in the premises without any dangerous or harmful manner.
 - (lx) Provided that all the waste material produced at the licenced premises are recycled, action shall be taken to categorize the waste material under the following categories and maintain them in separate bins.,
 - (a) bio degradable waste ;
 - (b) glass ;
 - (c) paper;

- (d) polythene or plastic ;
 - (e) iron or other kinds of metal;
 - (f) hazardous waste ;
- (Ixi) Employees employed in the institution shall have been provided with face masks, gloves and other required safety attire and they should be worn at the time of duty.
- (Ixii) A health insurance program relating to every employee shall be put into operation Waste disposed from the premises should be disposed according to the waste management program implemented by the Council.
- (Ixiii) Equipment used for the manufacturing process shall be maintained under proper maintenance and security.
- (Ixiv) Proposal- reports from a reputed institution about fire protection measures of the premises shall be obtained every six months.
9. All the material and other required material used for the relevant industry shall be stored without causing bad smell to emanate or causing any nuisance by every licence holder.
10. Every licence holder shall take adequate measures to release the oppressive sounds, steams or gases generated in a production process in his premises to the air at a suitable height and in a manner not to cause oppressive results when they are dispersed, or shall cause to release them through fire or condensation device.
11. Every licence holder shall construct sufficient drains in the premises where his business is conducted and maintain them properly and wash them daily.
12. Every licence holder shall construct the floor of the premises with some opaque material and maintain them in good repair and shall cause them to be washed daily.
13. Every licence holder shall paint the said premises annually during the period of conducting his business.
14. Every licence holder shall keep all the tools including equipment and utensils used in the trading activities cleanly.
15. Every licence holder shall take measures to collect in covered utensils the waste generated in his business premises, trimmings and leftover swept and collected, workshop-waste and by-products unless they are used in business activities further, and to remove them daily in the manner prescribed by the Chairman.
16. Every licence holder shall wash and clean the tanks that are used to wash or soak hides or similar materials after emptying them to prevent stinking.
17. Every licence holder shall ensure that any river, stream, canal, anicut, well, tank or any reservoir will not be polluted by causing certain dirty, odoursome or oppressive water or other such liquid to be sent down or to flow into a river, stream, canal, anicut, well, tank or any drain or by washing out certain oppressive material in them, or in some other way.
18. It shall be lawful for the Chairman or any Officer of the Pradeshiya Sabha specially authorized by the Chairman for the relevant purpose to enter premises relating to the by-law to inspect whether the relevant premises conforms to the by-law. It shall be the duty of the licence holder or the person in charge of the premises to allow such inspection.
19. Through such an inspection where a licensed premise is found to be non-complying to the provisions of these by-laws, it shall be lawful for the Chairman to take action to inform the licence holder in writing to accomplish the necessary conditions to restore the said premises to the proper order before a specified time period. It shall be the

duty of the licence holder to take action in accordance with the said notice. If he fails to take action accordingly, the Chairman has power to cancel the licence at such an occasion.

20. It shall be the duty of the Chairman on receipt of an application requesting for a licence to carry on any trade, to issue the licence within 30 days of receiving such application by him if the premises is in accordance with these by-laws. If the Chairman refuses to issue the licence it shall be his duty to inform the applicant so, along with reasons for his refusal.
- 21,. Every licence holder shall take measures to hang the licence and the list of names and addresses in languages of Sinhala and Tamil of the employees engaged in service at the industry or business relevant to the licence at a conspicuous place in the licence holding premises.
22. Every notice issued under this by-law shall be served to the owner or caretaker of the said place as the case may be. In the absence of such persons, it shall be pasted on at a place conspicuous at the licenced premises. It shall not be required to state the name of the premises, owner or person using the premises in such notice.
23. Contravention of any provisions of this by-law is deemed to be an offence and when convicted for such offence by a court of relevant jurisdiction, the penalty imposed thereon and where such contravention is continued even further and being convicted for that offence or where the Chairman or other authorized officer serves a written notice drawing attention to such contravention or violation, for each day of such continued contravention, the maximum of the additional penalty imposable shall be the maximum penalty and maximum of the additional penalty stated under Sub-section (2) of Section 153 of the Urban Councils Ordinance.
24. In this by-law unless the context otherwise requires,

“Council” means Wattala – Mabola Urban Council ;

“Chairman” means the Chairman of Wattala – Mabola Urban Council;

“Urban Council area of authority” means the area in which the Wattala – Mabola Urban Council has been established;

“An authorized officer of Urban Council,” means the officer/ officers authorized by the Chairman of Wattala – Mabola Urban Council to implement this by-law;

“Licensee” means any person who has been issued a licence to carry on a trade under these By-laws;

“Person” includes a group of persons incorporated or unincorporated;

“Person assigned with control” means a caretaker, protector, caretaker of property, manager or any other person assigned with the task of organizing, control or management of certain business.
25. In case of inconsistency between the Sinhala and Tamil texts of this by-law, the Sinhala text shall prevail.